

The Third Amendment: The Critical Protections of a Forgotten Amendment

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I. INTRODUCTION

The Third Amendment is treated like the wings of an ostrich: an ancient vestige and a remnant of an ancestry with little relevance today.¹ The Third Amendment provides that “[n]o Soldier shall, in time of peace be quartered in any house, without the consent of the Owner, nor in time of war, but in a manner to be prescribed by law.”² The U.S. Supreme Court has never had occasion to apply or interpret the Third Amendment, and only once has a federal court directly addressed a Third Amendment claim on the merits.³ Indeed, the Third Amendment is the least litigated Amendment in the Bill of Rights.⁴ The lack of litigation has led some commenters to highlight its effectiveness,⁵ and others to write its obituary.⁶

The prohibition of quartering enshrined in the Third Amendment reflects the fear of a standing army imposing military authority on the citizenry that stretched from the colonists all the way to antiquity.⁷ By prohibiting quartering, the Framers sought to bar the projection of military power into the

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1. See Jerry A. Coyne, *Why Evolution is True*, <http://jerrycoyne.uchicago.edu/excerpt.html> (last visited Feb. 7, 2014) (discussing the wings of an ostrich being vestigial in nature).

2. U.S. CONST. amend. III.

3. See Josh Dugan, Note, *When Is A Search Not A Search? When It's A Quarter: The Third Amendment, Originalism, and NSA Wiretapping*, 97 GEO. L.J. 555, 556 (2009) (noting the only time a federal court considered the Third Amendment was in 1982, when the Second Circuit held in *Engblom v. Carey*, 677 F.2d 957 (2d Cir. 1982), that the Third Amendment applied to the states by way of the Fourteenth Amendment).

4. Tom W. Bell, *The Third Amendment: Forgotten But Not Gone*, 2 WM. & MARY BILL RTS. J. 117, 140 (1993).

5. See *id.* at 142 (commenting that people would feel differently about the Third Amendment if they had to “tiptoe around slumbering GIs on the way to breakfast each morning”).

6. See Morton J. Horwitz, *Is the Third Amendment Obsolete?*, 26 VAL. U. L. REV. 209, 214 (1991) (concluding that the Third Amendment was “consigned to the graveyard of history”).

7. See, e.g., *Laird v. Tatum*, 408 U.S. 1, 15–16 (1972) (discussing the Third Amendment as a reflection of a traditional, deeply-rooted resistance of Americans to military intrusion into civilian affairs); see also *infra* Part II.B–C (overviewing the history of quartering and the American and English legal responses to it).

home during peacetime in order to protect both property and privacy.⁸ Today, because the U.S. military has a sprawling network of bases and ships around the world to house its soldiers, the need to physically quarter troops in private homes is, for the most part, obsolete.⁹ Modern technology, however, allows the military to monitor civilian life and enforce laws, creating nearly identical privacy and property concerns as the physical quartering of soldiers.¹⁰

In the landmark decision of *Miranda v. Arizona*,¹¹ the Supreme Court held that the Fifth Amendment right against self-incrimination could not be adequately exercised without a series of warnings.¹² The Court in *Miranda* focused on the effects of police-dominated interrogation and determined that the privilege against self-incrimination was far broader than a textual interpretation of the Fifth Amendment.¹³ Prior to *Miranda*, freedom from self-incrimination only applied in the courthouse.¹⁴ The Court held that the privileges intended by the Framers could not be delivered without additional safeguards.¹⁵

The Third Amendment needs a *Miranda* moment. Because of technology, the guarantees against military intrusion into the home intended by the Third Amendment are no longer provided by a plain language application of the prohibition on quartering.¹⁶ The Third Amendment requires *Miranda*-like safeguards to ensure that it functions as intended.¹⁷ As we have seen throughout our history, the Constitution is not so inflexible as to allow constitutional guarantees to be erased by the advance of technology.

8. See Bell, *supra* note 4, at 121 n.28 (using historical attitudes toward quartering to demonstrate that the Third Amendment was a response to the need to protect property and privacy rights of homeowners); Dugan, *supra* note 3, at 558 (arguing that the Third Amendment reflects the Framers' fears and anger over the military entering homes to enforce the law).

9. But see James P. Rogers, *Third Amendment Protections in Domestic Disasters*, 17 CORNELL J.L. & PUB. POL'Y 747, 780 (2008) (asserting that during domestic disasters such as Hurricane Katrina, National Guard soldiers requiring quarter in private homes to perform emergency relief work might run afoul of the Third Amendment).

10. See, e.g., Brian Ross et al., *Exclusive: Inside Account of U.S. Eavesdropping on Americans*, ABC NEWS: THE BLOTTER (Oct. 9, 2008), <http://abcnews.go.com/Blotter/story?id=5987804&page=1#.TsftHnO-Y20> (describing a National Security Agency ("NSA") wiretapping program that intercepted hundreds of calls between American citizens abroad and their friends and family back home). Whether the NSA is classified as a military or civilian agency is debatable, but its military leadership and focus on national security matters traditionally outside the realm of law enforcement has led some to classify it as a military agency. See Dugan, *supra* note 3, at 583–87. See also *infra* Part V.C. In some ways the privacy concerns today are even greater than when the Bill of Rights was written. In colonial times it was readily apparent if a soldier was in your home, but this is not the case with wiretapping and other electronic surveillance.

11. 384 U.S. 436 (1966).

12. *Id.* at 467.

13. See *id.* at 478; see *infra* Part IV.A (discussing *Miranda*'s expansion of the Fifth Amendment privilege against self-incrimination).

14. *Miranda*, 384 U.S. at 510 (Harlan, J., dissenting).

15. See *id.* at 444 (majority opinion) (listing as necessary for the exercise of Fifth Amendment rights the right to remain silent, the right to be told any statement made can be used as evidence against him, and the right to retained or appointed counsel during interrogation).

16. See *infra* Part IV.B (concluding that a purely literal application of the Third Amendment is contrary to the intention of the Framers).

17. See *infra* part IV.B (arguing that *Miranda* provides an appropriate framework for interpreting the Third Amendment).

This Article argues that the Third Amendment should be interpreted and applied to provide the protections intended by the Framers—a complete bar on the projection of military power into the home in the absence of war and congressional authorization.

To demonstrate how the Third Amendment should be applied, Part II provides a brief overview of the English and colonial American experience with quartering. Part II shows that the same violations of dignity, privacy, and property rights which led the English to prohibit quartering were experienced by those who drafted and ratified the Bill of Rights. Part II explores the legislative responses to quartering in both England and colonial America, as well as the change in the role of the monarchy, which initially provided protections from quartering but later quartered soldiers on the civilian population.

Part III examines the drafting debates of the Constitution and Bill of Rights regarding how to address the issue of quartering. The differences between proposed versions of the Third Amendment are illustrative of the protections intended by the Framers. The changes made between initial proposals and what was ultimately adopted support the assertion that the Third Amendment was written to protect privacy and property in the home.

Part IV discusses how *Miranda* provides a framework for how Third Amendment jurisprudence should develop. Using *Miranda* as a guide, Part IV shows that the literal interpretation of the Third Amendment assumed by most scholars is flawed. The Supreme Court has long struggled with technology's effect on the freedoms guaranteed in the Bill of Rights, and Part IV argues that by employing the appropriate methods of constitutional interpretation, the most absurd result would be to assume the Amendment is obsolete.

Lastly, Part V examines the difficulties in applying the Third Amendment. Open questions remain, such as: (1) what is wartime under the Third Amendment?; (2) what actions must Congress take to lift the protections of the Third Amendment?; and (3) what constitutes military authority? Part V summarizes the facts and arguments explored in this Article to conclude that the Third Amendment prohibits military surveillance and intrusion into the home without congressional approval, and even then such intrusions may only take place during wartime.

II. BACKGROUND

To understand how a prohibition against quartering came to be included in the Bill of Rights and how its protections are relevant today, it is necessary to understand what quartering meant to England and to the American colonists.

A. *The English Experience with Quartering*

Prior to the Norman Conquest in 1066, standing armies were relatively rare and quartering was virtually unknown in England.¹⁸ For centuries, defense in England was based on the fyrd, a militia system in which all able-bodied men could be called into service for a short duration in the event of war.¹⁹ The Norman Conquest brought many changes to the country, including the introduction of the feudal system and the end of the fyrd.²⁰ The Normans militarized the country, and feudal disputes led to an increase in armed conflict.²¹ For the first time a large presence of professional soldiers who required lodging appeared in England.²²

In feudal England, wars devastated vast areas of the country and large segments of the population suffered through involuntary quartering.²³ Professional soldiers and standing armies were seen as tools of oppression, not protection.²⁴ As professional soldiers destroyed privacy and property, the English experience with quartering became associated with two separate but related issues experienced by the colonists and ultimately reflected in the Third Amendment: mistrust of standing armies in peacetime, and opposition to unreasonable searches within private homes.²⁵

It was not Parliament but the king who provided the first legal protections from the practice of quartering in England. The first recorded English legal response to quartering was by royal decree in 1131, when in the London Charter, Henry I forbid forced billeting within the walls of London by his troops or any others.²⁶ Other cities followed, and between 1131 and 1208,

18. See William S. Fields & David T. Hardy, *The Third Amendment and the Issue of the Maintenance of Standing Armies: A Legal History*, 35 AM. J. LEGAL HIST. 393, 395–96 (1991) (stating that because England was a small, agrarian based island with limited need to project power, the only professional soldiers of the day were housecarls directly attached to the household of the king and the earls).

19. *Id.* at 396.

20. *Id.*

21. *Id.* at 397.

22. See *id.* (discussing how the landowners' option to provide money to the king instead of knights for service led to the king hiring large numbers of professional soldiers for the first time).

23. See *id.* at 397–98 (listing some of the population's other grievances committed by Norman soldiers: the sacking and burning of villages, towns, and manors, as well as the murder, rape, and robbery of the inhabitants).

24. Fields & Hardy, *supra* note 18, at 398.

25. See William Sutton Fields, *The Third Amendment: Constitutional Protection from the Involuntary Quartering of Soldiers*, 124 MIL. L. REV. 195, 211 n.19 (1989) (suggesting that the "castle doctrine" grew out of the unreasonable searches and seizures conducted by quartered soldiers).

26. Bell, *supra* note 4, at 119. Translated from its original Latin into English, the Charter reads: "within the walls of the city no one is to be billeted; neither for one of my household nor for one of any other is lodging to be exacted by force." *Id.* Billeting and quartering for the most part cover the same conduct, though some colonial leaders such as Patrick Henry carefully reserved the term "quarter" for the general concern over having a standing army and used "billet" for the actual act of housing soldiers in private homes. Dugan, *supra* note 3, at 567. Some commentators have claimed the first prohibition against quartering occurred within the English common law system, however, the first legal protection against quartering was provided in ancient Rome, where for much of the Empire's history, quartering in the homes of Roman citizens was forbidden. Compare Bell, *supra* note 4, at 118 (claiming the prohibitions on quartering were a "uniquely British invention"), and Fields & Hardy, *supra* note 18, at 395, with JOSEPH PLESCIA, *THE BILL OF RIGHTS AND ROMAN LAW* 63–64 (1995) (explaining that quartering was forbidden until Carcalla's Act of 212 C.E. gave the army the power to quarter absent a specific senatorial exemption).

twenty-three instances of legal protections from quartering were enacted, covering twenty-two cities.²⁷ In 1215 the Magna Carta extended that protection to all cities, boroughs, and ports in England.²⁸

Though the early protections from quartering were theoretically guaranteed by the king, enforcement of those protections required local town marshals or constables to deny soldiers entry into a city.²⁹ Predictably, this seldom occurred, and the problem of quartering escalated between the thirteenth and sixteen centuries.³⁰ Parliament failed to provide funding for barracks or other lodging to soldiers, leaving them with little choice but to quarter upon civilians.³¹ Grievances associated with quartering became so widespread that they are recognized as one of the causes of the English Civil War.³²

By the early seventeenth century, the monarch no longer protected civilians from quartering, but rather caused the problem.³³ It was left to Parliament to fill the legal void and provide protection from quartering to the citizenry. The anger over quartering reached a boiling point in 1628 when Parliament presented the Petition of Right to Charles I, noting:

whereas of late, great companies of soldiers and mariners have been dispersed into divers counties of the realm, and the inhabitants, against their wills have been compelled to receive them into their houses, and there to suffer them to sojourn, against the laws and customs of this realm, and to the great grievance and vexation of the people.³⁴

The Petition of Right was the first time that Parliament itself gave the problem of quartered troops a legal identity of its own, and it became the foundation of the English constitution's protections from quartering.³⁵ Despite the Petition of Right, it would take many years for the practice to be completely abolished in England. The English Civil War (1641–1651), the Restoration of 1660, and the Third Anglo-Dutch War (1672–1674) led to further quartering among the civilian population.³⁶ Parliament, sensing the

27. Bell, *supra* note 4, at 120.

28. *Id.* The Magna Carta did not specifically mention quartering but stated: "London shall have all its ancient liberties and free customs. Besides we will and grant that all the other cities, boroughs, and ports shall have all their liberties and free customs," thereby codifying the London Charter's provisions against quartering and other similar charter's guarantees. *Id.*

29. See Fields, *supra* note 25, at 196–97 (explaining that soldiers would not just quarter upon civilians but would also take items from the home without payment as well).

30. See Carnon Hardy, *A Free People's Intolerable Grievance: The Quartering of Troops and the Third Amendment*, in *THE BILL OF RIGHTS: A LIVELY HERITAGE* 67, 69 (John Kukla ed., 1987) (discussing unsuccessful attempts by the monarch to reign in the practice of quartering by centralizing control of armies).

31. Fields, *supra* note 25, at 197–98.

32. Hardy, *supra* note 30, at 69.

33. See *id.* at 69–70 (remarking that the Stuart dynasty's extensive use of quartering was a factor in leading England to civil war).

34. Fields, *supra* note 25, at 198. The Petition of Right also addressed the issues of using martial law, taxes, and imprisonment without providing the cause. BURNHAM HOLMES, *THE AMERICAN HERITAGE HISTORY OF THE BILL OF RIGHTS: THE THIRD AMENDMENT* 31 (1991). The Petition of Right is recognized as the first attempt by Parliament to limit the power of the monarch. *Id.*

35. Hardy, *supra* note 30, at 70.

36. Bell, *supra* note 4, at 124.

citizenry's discontent, passed the Anti-Quartering Act of 1679, which provided: "noe officer military or civill nor any other person whatever shall from henceforth presume to place quarter or billet any souldier or souldiers upon any subject or inhabitant of this realme . . . without his consent."³⁷ Though the Act appeared powerful as it applied to both public and private structures, and contained no exception for times of war, King James II ignored the Act completely.³⁸ As a direct consequence of this and other abuses of power, he was overthrown in the Glorious Revolution.³⁹ Soon after, Parliament passed the Mutiny Act, forbidding the quartering of soldiers in private homes without the consent of the owners.⁴⁰ The Mutiny Act, however, did not apply to homes in English colonies.⁴¹

B. The Early American Experience with Quartering

Colonial America's military needs were similar to Saxon England's: geographic isolation and the lack of a need to project military power made a militia system adequate for defense.⁴² The biggest military issue of the day was conflict with the Native Americans, to which the militia system was adapted.⁴³ Furthermore, the prevalent political thinking of English Whigs and Classical Republicans asserted that a militia system was critical to a free society.⁴⁴

Quartering became a major grievance of the colonists in the latter half of the 1700s and the issue arose each time the British military presence in the new world increased.⁴⁵ During King Phillip's War from 1675 to 1676, soldiers were quartered in private homes in Massachusetts and Connecticut, and the same occurred in New York during the Dominion of New England in 1688.⁴⁶ Throughout the 1600s, Virginia, South Carolina, and other colonies sporadically faced the issue as well.⁴⁷ American complaints were generally directed at the professional soldiers from England, as militia members rarely

37. *Id.*

38. Fields & Hardy, *supra* note 18, at 404–05; *see also* Hardy, *supra* note 30, at 71 (stating that "[i]n practice under James II it was as if the law had never passed").

39. Fields & Hardy, *supra* note 18, at 405. Among the abuses of King James II listed in the English Bill of Rights of 1689 are: "quartering soldiers contrary to law." Fields, *supra* note 25, at 199.

40. Fields & Hardy, *supra* note 18, at 406. The Mutiny Act, however, only applied to private dwellings, as it allowed civilian authorities to quarter soldiers in public structures such as inns, alehouses, and stables. *Id.*

41. Hardy, *supra* note 30, at 73. This omission would later become one of the causes of the American Revolution. Fields & Hardy, *supra* note 18, at 405.

42. *See* Fields & Hardy, *supra* note 18, at 413–14 (noting that although the militia had fallen out of use in England, it was a vital institution in the colonies).

43. *Id.* at 414. Long-range patrols and rapid response units were developed to deal with hostile indigenous peoples. *Id.*

44. *Id.*; *see also* Fields & Hardy, *supra* note 18, at 406–414 (providing further background on English political theory in colonial America).

45. Fields, *supra* note 25, at 199.

46. *Id.*

47. *Id.*

required quartering—their service was for a short duration and seldom was lodging necessary outside their home county.⁴⁸ The colonial legislatures attempted to deal with the problem of quartering by providing legal protection from the practice.⁴⁹ The protections, however, did not apply during wartime and only applied to private homes—allowing for quartering in public structures such as alehouses and inns.⁵⁰

C. Quartering in the Lead-up to Revolution

The French and Indian War is widely seen as the inflection point in the American experience with quartering.⁵¹ The French and Indian War brought thousands of British troops to the colonies.⁵² The colonies, however, lacked permanent barracks to house the troops.⁵³ Colonial legislatures refused to build or fund barracks, as doing so would accept a permanent standing army in the colonies.⁵⁴ In 1756, New York City refused to provide winter quarters for British soldiers until the commanding officer John Cambell threatened to bring more troops.⁵⁵ Troops requesting lodging in Philadelphia met similar resistance where a request was held up in the Philadelphia legislature for weeks, forcing over one hundred soldiers to camp in the snow.⁵⁶ Like New York City, Philadelphia only acquiesced when faced with the threat of the arrival of additional troops.⁵⁷ The experience was the same for British commanders in other colonies, who were forced to request assistance from hostile legislatures.⁵⁸

Though victorious, the French and Indian War left England with such a large debt that it nearly bankrupted the empire.⁵⁹ England sought to have the

48. Fields & Hardy, *supra* note 18, at 414.

49. *Id.*

50. *Id.*; see also Bell, *supra* note 4, at 125 (noting that the first legal protection against quartering in the colonies was provided in the New York Assembly's 1683 Charter of Liberties and Privileges which read: "[n]oe Freeman shall be compelled to receive any Marriners or Souldiers into his house and there suffer them to Sojourne, against their willes provided Alwayes it be not in time of Actuell Warr within this province"). In contrast to English protections against quartering, the American prohibitions distinguished between peacetime and wartime in their applicability. Bell, *supra* note 4, at 125. Scholars suggest that this difference was a balance between English legal traditions and the realities of the new continent. *Id.*

51. See Bell, *supra* note 4, at 125 (stating that the first time that quartering of soldiers became a major problem for the colonists was during the French and Indian War); see also, Fields, *supra* note 25, at 200 ("quartering of soldiers became a significant problem for the colonies by the mid-1700's with the arrival of thousands of British regulars during the French and Indian War (1754–1763)"). The French and Indian War is the name given to the North American theater of the Seven Years War, a war involving Austria, England, France, Great Britain, Prussia, and Sweden. *The French & Indian War*, U.S. HISTORY.ORG, <http://www.ushistory.org/declaration/related/frin.htm> (last visited Feb. 7, 2014).

52. Bell, *supra* note 4, at 125.

53. Fields & Hardy, *supra* note 18, at 415.

54. See *id.* (explaining the "symbolic value" of barracks and their interconnectedness with the standing army).

55. *Id.*

56. *Id.*

57. *Id.*

58. *Id.*

59. *The French & Indian War*, U.S. HISTORY.ORG, <http://www.ushistory.org/declaration/related/frin.htm> (last visited Feb. 7, 2014). Some historians have called the Seven Years War the first world war. See

colonists pay for the war and the costs of defending the large frontier.⁶⁰ Though the British soldiers were ostensibly stationed in North America to protect the colonists from the Native Americans on the frontier, English leaders desired to prevent further westward expansion.⁶¹ They believed that colonial encroachment might interfere with the profitable fur trade with the Native Americans.⁶² The colonists protested the stifling of westward movement, viewing the stationing of the standing army not as a measure of protection but as one of control.⁶³

One way in which the British tried to pass the cost of war onto the colonies was to enact the Quartering Act of 1765.⁶⁴ The Quartering Act directed the colonial legislatures to provide for the basic needs of soldiers, including bedding, cooking utensils, firewood, beer or cider, and candles.⁶⁵ In 1766, the Act was amended to require the legislatures to billet soldiers in alehouses and unoccupied homes.⁶⁶ This amendment to the Quartering Act allowed unlimited abuse by English officers.⁶⁷ Despite the law, in 1765 the New York Assembly refused to comply with a request from General Thomas Gage to provide billeting and provisions.⁶⁸ In response, Parliament suspended the New York Assembly until it complied with the request.⁶⁹ In

Fred Anderson, *The Real First World War And The Making Of America*, (Nov. 1, 2005), <http://www.americanheritage.com/content/real-first-world-war-and-making-america?page=2>. Though the English had removed the French presence from continental North America, the addition of Canada to the British Empire was a large drain on the British treasury. See *id.* England's national debt nearly doubled during the war, and over 300,000 new subjects, mostly Canadians and Native Americans, were brought into the Empire. *Id.*

60. See Fields & Hardy, *supra* note 18, at 415–16 (asserting that the colonists were suspicious of British motives when soldiers were redeployed from the frontier to the seaboard).

61. See BERNHARD KNOLLENBERG, *ORIGIN OF THE AMERICAN REVOLUTION: 1759–1766* 100–05 (1960) (discussing the Proclamation of 1763 issued by King George III which forbade the colonists from settling west of the Appalachian Mountains).

62. Fields & Hardy, *supra* note 18, at 415–16.

63. *Id.* The colonists felt that the threat of Native American attacks was greatly diminished as a result of the removal of the French presence in Canada. *Id.* The colonists were also wary of British motives because the ranger units most effective against Native Americans were being replaced with less effective British regulars. *Id.*

64. *Quartering Act (1765)*, UNITED STATES HISTORY, <http://www.u-s-history.com/pages/h641.html>. (last visited Feb. 7, 2014). The portion of the Quartering Act most objectionable to the colonists read:

VII. And whereas there are several barracks in several places in his Majesty's said dominions in *America*, or some of them, provided by the colonies, for the lodging and covering of soldiers in lieu of quarters, for the ease and conveniency as well of the inhabitants of and in such colonies, as of the soldiers; it is hereby further enacted, That all such officers and soldiers, so put and placed in such barracks, or in hired uninhabited houses, outhouses, barns, or other buildings, shall, from time to time, be furnished and supplied there by the persons to be authorized or appointed for that purpose by the governor and council of each respective province, or upon neglect or refusal of such governor and council in any province, then by two or more justices of the peace residing in or near such place, with fire, candles, vinegar, and salt, bedding, utensils for dressing their victuals, and small beer or cyder, not exceeding five pints, or half a pint of rum mixed with a quart of water, to each man, without paying any thing for the same.

Quartering Act of 1765, 5 GEO. III c. 33.

65. Fields & Hardy, *supra* note 18, at 415.

66. *Id.*

67. Seymour W. Wurfel, *Quartering of Troops: The Unlitigated Third Amendment*, 21 TENN. L. REV. 723, 724–25 (1951).

68. Fields & Hardy, *supra* note 18, at 415.

69. *Id.*

1768, after an incident between a group of colonists and a tax-collector, British troops marched into Massachusetts with the intention of “overawing” the citizens.⁷⁰ The Massachusetts governor was forced to house the troops in the statehouse after the selectmen of Boston refused to provide lodging.⁷¹

The problems with quartering were not limited to disagreements between British officers and colonial legislatures. As British soldiers in the colonies became increasingly used for law enforcement and tax collection, confrontations between civilians and soldiers became more commonplace.⁷² The most famous act of resistance in colonial America—the Boston Tea Party of December 16, 1773—also provoked the most severe parliamentary reaction.⁷³ Parliament passed a series of acts, including the Quartering Act of 1774, that came to be known collectively as the “Intolerable Acts.”⁷⁴ The Quartering Act of 1774 updated the 1765 version to include occupied dwellings such as private homes.⁷⁵ English soldiers knew the power that quartering had over the citizenry. In the aftermath of the Boston Massacre, as they waited on Castle Island outside of Boston for reinforcements to arrive, they sang:

Our fleet and our army, they soon will arrive,
Then to a bleak island, you shall not us drive.
In every house, you shall have three or four,
And if that will not please you, you shall have half a score.
Derry down, down, hey derry down.⁷⁶

For the colonists, quartering was a violation of privacy and property. In a letter to British General George Gage dated October 11, 1776, the First Continental Congress complained of “the frequent invasions of private property, and the repeated insults they receive from the soldiery” as “tending to overthrow the liberties of America.”⁷⁷ The Congress also passed a Declaration of Resolves on October 14, 1774.⁷⁸ Among the resolves was a

70. See DAVID B. SCOTT, *A SCHOOL HISTORY OF THE UNITED STATES: FROM THE DISCOVERY OF AMERICA TO THE YEAR 1870* 155 (1876).

71. Bell, *supra* note 4, at 126.

72. See Fields & Hardy, *supra* note 18, at 416 (observing that the use of the military to aid law enforcement was particularly objectionable to the colonists). The Boston Massacre of March 5, 1770 is the most salient example of the confrontation between American colonists and British soldiers. Fields, *supra* note 25, at 201. The Boston Massacre left five colonists dead and has been viewed by many as a turning point in colonial sentiment against British rule. RUSSELL BOURNE, *CRADLE OF VIOLENCE: HOW BOSTON’S WATERFRONT MOBS IGNITED THE AMERICAN REVOLUTION* 162, 164 (2006).

73. KNOLLENBERG, *supra* note 61, 246.

74. See Bell, *supra* note 4, at 126. Five acts made up the Intolerable Acts: the Quartering Act of 1774, the Boston Port Bill, the Administration of Justice Act, the Massachusetts Government Act, and the Quebec Act. *The Coercive Acts*, U.S. HISTORY.COM, <http://www.u-s-history.com/pages/h647.html> (last visited Feb. 7, 2014).

75. Bell, *supra* note 4, at 126.

76. Hardy, *supra* note 30, at 78–79.

77. *Journal of the Continental Congress* (Oct. 11, 1774), available at [http://memory.loc.gov/cgi-bin/query/r?ammem/hlaw:@field\(DOCID+@lit\(jc00130\)\)](http://memory.loc.gov/cgi-bin/query/r?ammem/hlaw:@field(DOCID+@lit(jc00130))).

78. *Declaration and Resolves of the First Continental Congress*, COLONIAL WILLIAMSBURG, <http://www.history.org/almanack/life/politics/resolves.cfm> (last visited Feb. 7, 2014).

statement against both quartering and the maintenance of the standing army, a pattern repeated in the Declaration of Independence and the Bill of Rights.⁷⁹ Among the grievances listed in the Declaration of Independence, the colonists included the British military's independence and superiority to colonial civil authority and the quartering of large bodies of troops within colonial towns and cities without consent.⁸⁰ For the colonists, quartering was a source of grievances because it involved intrusions into the privacy of the home, restrictions of liberties, and abuses of persons and property.⁸¹ The Framers' experience with quartering and their knowledge of similar grievances throughout English history led them to guarantee that American homes would be free from military intrusion.⁸²

III. THE THIRD AMENDMENT

A. Precursors to the Third Amendment

The Articles of Confederation, written and ratified in the aftermath of the Revolutionary War, solved the issue of quartering by prohibiting a national standing army.⁸³ While the Articles of Confederation were in force, a number of state constitutions included prohibitions on quartering.⁸⁴ Though quartering was no longer an issue, Shays' Rebellion in 1786 proved that the Articles of Confederation left the national government unable to deal with military threats.⁸⁵

During the Constitutional Convention, despite the colonial aversion to a standing army, the Federalists considered one necessary in light of the security concerns created by foreign and indigenous threats in North America.⁸⁶ The Federalists believed that under the Constitution, concerns over quartering were unfounded because a government elected by the people would control the military.⁸⁷ The Anti-Federalists maintained that in

79. *Id.* The relevant resolves were listed consecutively: "[a]lso the act passed in the same session, for the better providing suitable quarters for officers and soldiers in his majesty's service, in North-America." *Id.* This was followed by: "[a]lso, that the keeping a standing army in several of these colonies, in time of peace, without the consent of the legislature of that colony, in which such army is kept, is against law." *Id.*

80. *The Declaration of Independence: The Will, Want, and Hopes of the People*, U.S. HISTORY.ORG, <http://www.ushistory.org/declaration/document/> (last visited Feb. 7, 2014).

81. Fields, *supra* note 25, at 202.

82. See Hardy, *supra* note 30, at 80 (claiming that American aversion to quartering survived the Revolutionary War because it was so deeply rooted in both English and colonial history).

83. ARTICLES OF CONFEDERATION OF 1781. The Articles contained no direct mention of the word "quartering," but with armies raised by the several states, problems with quartering would be averted. *Id.*

84. Bell, *supra* note 4, at 127. Specifically, Delaware, Maryland, and Massachusetts issued declarations of rights protecting their citizens from quartering. *Id.*

85. CHRISTOPHER COLLIER & JAMES LINCOLN COLLIER, DECISION IN PHILADELPHIA: THE CONSTITUTIONAL CONVENTION OF 1787 13 (1986).

86. See Fields and Hardy, *supra* note 18, at 420 (noting that though the militia remained politically popular, it proved inadequate for defense after a number of failures both during and after the Revolutionary War).

87. *Id.* at 423–24. The Constitution spreads the power of the military between the legislative and executive branch in a number of ways. Among the powers of Congress are to "declare War," "raise and

peacetime, such a standing army was unnecessary, would be used as a tool of oppression and tax collection, and could supplant civilian authority.⁸⁸ Furthermore, Federalist assurances that the military would be in the hands of a popularly-elected government did little to allay concerns that a majority in control of the government could use the military to control a minority.⁸⁹ Though the Federalists ultimately prevailed and the Constitution was ratified, the compromise between the Federalists and the Anti-Federalists called for accession to a bill of rights after ratification.⁹⁰ Prior to the passage of the Bill of Rights, the Constitution contained no prohibition on quartering; however, concern over the practice was so great that five of the eight states proposing a national bill of rights included some prohibition or limitation on quartering in their proposal.⁹¹

B. Ratification Debates

The idea of a bill of rights was not uncontroversial. James Madison, the primary drafter of the Bill of Rights, confided in a letter to Thomas Jefferson that the rights might prove to be ineffective “parchment barriers” incapable of curtailing government power.⁹² Alexander Hamilton, a strong Federalist, was opposed to a bill of rights out of fear that listing certain rights would imply that a government could take away other unlisted rights.⁹³ Despite these concerns, the Bill of Rights became a necessary part of the compromise between Federalists and Anti-Federalists to ratify the Constitution.⁹⁴ In

support Armies,” “provide and maintain a Navy,” “provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions,” and to “provide for organizing, arming, and disciplining, the Militia.” U.S. CONST. art. I, § 8, cl. 11–16. Meanwhile, the executive “shall be Commander in Chief of the Army and Navy of the United States, and of the Militia of the several States, when called into the actual Service of the United States.” U.S. CONST. art. II, § 2, cl. 1.

88. See, e.g., *The Address and Reasons of Dissent of the Minority of the Convention of Pennsylvania to their Constituents*, PENNSYLVANIA PACKET AND DAILY ADVERTISER (Dec. 18, 1787). As “Centinel,” a prominent Anti-Federalist noted: “[a] standing army in the hands of a government placed so independent of the people, may be made a fatal instrument to overturn the public liberties; it may be employed to enforce the collection of the most oppressive taxes, and to carry into execution the most arbitrary measures.” *Id.* “Centinel” was likely the pseudonym of Samuel Bryan, a Pennsylvanian Anti-Federalist. *Id.*; see also Murray Dry, *The Constitutional Thought of the Anti-Federalists*, <http://www.apsanet.org/imgtest/ConstThoughtAntifederalists.pdf> (last visited Feb. 7, 2014) (discussing the Anti-Federalist fear that the power to raise an army could undermine democratic rule); THE ANTI-FEDERALIST PAPERS NO. 10. (Jan. 24, 1788) (arguing that a standing army presents a danger that its leader could wield its power to subvert a legitimate government).

89. Fields & Hardy, *supra* note 18, at 424.

90. *Id.*

91. Fields, *supra* note 25, at 202. At the Constitutional Convention, Charles Pinckney proposed that the phrase “[n]o soldier shall be quartered in any House in time of peace without consent of the owner” be added to the Constitution. JAMES MADISON, DEBATES IN THE FEDERAL CONVENTION OF 1787, *available at* http://www.constitution.org/dfc/dfc_0820.htm. The proposal was ultimately rejected, and the issue of quartering was left for the Bill of Rights. See Fields, *supra* note 25, at 202.

92. Letters from James Madison to Thomas Jefferson (Oct. 17, 1788), *available at* [http://memory.loc.gov/cgi-bin/query/r?ammem/hlaw:@field\(DOCID+@lit\(dg025311\)\)](http://memory.loc.gov/cgi-bin/query/r?ammem/hlaw:@field(DOCID+@lit(dg025311))) (last visited Feb. 7, 2014).

93. RALPH A. ROSSUM AND G. ALAN TARR, AMERICAN CONSTITUTIONAL LAW: THE BILL OF RIGHTS AND SUBSEQUENT AMENDMENTS 49 (9th ed. 2014).

94. COLLIER, *supra* note 85, at 256, 261.

regard to quartering, three variations of the Third Amendment were proposed: two by the states and one by James Madison.⁹⁵

C. Proposed Versions of the Third Amendment

The first version of the Third Amendment, proposed by Maryland and New Hampshire, forbade quartering without consent of the owner in times of peace but gave no guidance as to other times.⁹⁶ This ambiguity would have made interpretation of the amendment during wartime difficult. Gridlock between Federalists and Anti-Federalists in the Maryland and New Hampshire legislatures prevented an agreement on how to oversee quartering during wartime.⁹⁷ This version of the Amendment was rejected as too vague, leaving for debate the proposal of James Madison and one put forward by Virginia, New York, and North Carolina.⁹⁸

The second proposed amendment, advanced by Virginia, New York, and North Carolina, was ultimately refined into the Third Amendment; however, the differences between it and Madison's proposed version provide clues as to how the Framers intended the Third Amendment to function. Virginia, New York, and North Carolina's proposal subjected wartime quartering to additional controls, such as requiring approval of the legislature or a neutral magistrate, yet the States eventually agreed on the language we have today: "[n]o Soldier shall, in time of peace be quartered in any house, without the consent of the Owner, nor in time of war, but in a manner to be prescribed by law."⁹⁹ By contrast, James Madison's version forbade quartering during peacetime, as well as "at any time, but in a manner warranted by law."¹⁰⁰ The difference is that Madison's proposal allowed for quartering during any time other than peace, whereas the accepted proposal only allowed for quartering during a time of war.¹⁰¹

Some commentators describe Madison's version as superior because it would have been easier to apply.¹⁰² It would have prohibited quartering in times of peace, but allowed Congress and perhaps the executive to legalize quartering in times of unrest, insurrection, conflict, or full scale war.¹⁰³ The Third Amendment, by contrast, forbids quartering in times of peace and allows Congress to authorize quartering in times of war, but is silent as to

95. Bell, *supra* note 4, at 129.

96. See *id.* at 129–30 (highlighting the absence of specifics in the proposal of Maryland and New Hampshire).

97. See *id.* (observing that Maryland and New Hampshire's constitutions left the authority to quarter in times of war with the legislature, but in the period between the ratification of their state constitutions and the Constitutional Convention, Anti-Federalists gained popularity and demanded stricter controls on quartering).

98. *Id.*

99. *Id.* at 139; U.S. CONST. amend. III.

100. Bell, *supra* note 4, at 134.

101. *Id.* at 134–35.

102. *Id.* at 135.

103. See *id.*

periods of unrest or low-level conflict.¹⁰⁴ Why the drafting committee ultimately rejected Madison's proposal is uncertain as no surviving record of the meetings' minutes exists.¹⁰⁵ What is known is that Madison was a member of the committee and had the opportunity to argue in favor of his version of the Amendment.¹⁰⁶ Scholars suggest that Madison's version failed because either the committee was unwilling or unable to resolve the issue of whether Congress or the Executive could authorize quartering during unrest, the states would have rejected an alteration of the Amendment, or the committee did not want to foreclose the opportunity for executive power over quartering during unrest.¹⁰⁷

Perhaps the true reason Madison's version failed is that the committee did not want to authorize quartering during any time other than declared war. England used quartering as a political weapon to prevent colonial expansion westward,¹⁰⁸ to overawe its citizens,¹⁰⁹ and to quell rebellion.¹¹⁰ Quartering had long been a tool of oppression, and the Framers may have wanted to restrict its use to only those times when absolutely necessary.¹¹¹ Furthermore, the dichotomy between peace and war was clearly understood by the Framers. Specific language pertaining to conflict below the scale of war, such as "Insurrections," "Letters of Marque," and "Reprisal," appears throughout the Constitution.¹¹² "Insurrection," similar to "unrest," was seen as a problem for the militia to handle, which would forgo the need to quarter soldiers.¹¹³ Had the Framers desired for the government to have greater latitude in when to authorize quartering, they would have accepted Madison's version of the Amendment.

Some scholars argue that the Third Amendment allows for executive authorization of quartering.¹¹⁴ This argument ignores two realities. First, the

104. U.S. CONST. amend. III; *see also* Bell, *supra* note 4, at 134 (discussing the "grey area" between peace and war in the Third Amendment).

105. Bell, *supra* note 4, at 135.

106. *Id.*

107. *Id.*

108. *See supra* notes 61–63 and accompanying text (reviewing British attempts to stifle westward settlement by colonial proclamation, then by quartering troops in American homes).

109. *See* SCOTT, *supra* note 70, at 155 (discussing the British deployment of troops to Massachusetts to intimidate the citizenry).

110. *See, e.g.,* Bell, *supra* note 4, at 124 (discussing the "Highland host," when in 1678, 10,000 English troops were quartered in Scottish homes to put down nonconformist Presbyterian covenants).

111. *See* Fields, *supra* note 25, at 202–03 (claiming that the Framers recognized that the government might need to quarter troops during times of war). Thomas Sumter of South Carolina proposed a modified Amendment which read that "[n]o soldier shall be quartered in any house without the consent of the owner," and Elbridge Gerry of Massachusetts proposed a modification reading: "[n]o soldier shall, in time of peace, be quartered in any house, without the consent of the owner, nor in time of war but by a civil magistrate in a manner prescribed by law." *Id.* at 203. Both of these proposed changes were rejected. *Id.*

112. *See* U.S. CONST. art. I, § 8, cl. 15 ("Insurrection"); U.S. CONST. art. I, § 10, cl. 1 ("Letters of Marque" and "Reprisal").

113. U.S. CONST. art. I, § 8, cl. 15. Though the militia had performed poorly in the Revolutionary War, the Constitution still held the institution in high regard, giving Congress the power "[t]o provide for calling forth the Militia to execute the Laws of the Union, suppress Insurrections and repel Invasions." *Id.*

114. Bell, *supra* note 4, at 135.

language “in a manner to be prescribed by law” is a requirement for action by the legislature, as the president executes laws but does not make them.¹¹⁵ Madison’s proposal allowing for quartering in a manner “warranted by law” would have been more open to interpretation, as warranted could be viewed as allowing for an exigent circumstance such as war. Second, the colonists viewed quartering as an injustice perpetrated by a single individual, King George III, and were unwilling to place all military power in the hands of the executive.¹¹⁶ After the colonists’ experience with a tyrannical king, it would contradict every grievance they had regarding quartering to grant the president that same authority. Despite some suggestions otherwise, the protections provided by the Third Amendment can only be lifted by congressional action during wartime.¹¹⁷

D. The Protections Intended by the Third Amendment

The Third Amendment is widely understood as having been written to protect privacy and property from military intrusion, and as a guarantee that the military is subordinate to civilian authority.¹¹⁸ For early America, privacy was “a subtle notion” protected by safeguards such as the right to be free from quartering and unreasonable searches and seizures.¹¹⁹ As the American colonists were struggling with quartering by British troops, in England the prohibition against quartering contained in the Mutiny Act effectively prevented any exercise of military authority or surveillance in the home.¹²⁰ As William Pitt the Elder said:

[t]he poorest man may in his cottage bid defiance to all the force of the Crown. It may be frail; its roof may shake; the wind may blow through it; the storms may enter; the rain may enter; but the King of England cannot enter—all his forces dare not cross the threshold of the ruined tenement!¹²¹

William Pitt specifically used the term “forces”, not “soldiers.” Pitt, the colonists, the Framers, and the English all understood that a prohibition on the quartering of troops was a complete bar to the projection of military power

115. *Ex parte Milligan*, 71 U.S. (4 Wall.) 2, 139 (1866) (Chase, C.J.) (“The power to make the necessary laws is in Congress; the power to execute in the President . . . [b]ut neither can the President, in war more than in peace, intrude upon the proper authority of Congress.”); see also U.S. CONST., art. I, § 1 (“[a]ll legislative Powers herein granted shall be vested in a Congress of the United States”).

116. THE DECLARATION OF INDEPENDENCE para. 6 (U.S. 1776).

117. See *infra* Part V.B.

118. THE BILL OF RIGHTS AND THE STATES: THE COLONIAL AND REVOLUTIONARY ORIGINS OF AMERICAN LIBERTIES 499–500 (Patrick T. Conley & John P. Kaminski ed., 1992).

119. See Ken Gormley, *One Hundred Years of Privacy*, 1992 WIS. L. REV. 1335, 1359 (highlighting the allegations of invasions of privacy leveled against King George III in the Declaration of Independence). *But see* Fields, *supra* note 25, at 211 (concluding that the colonists had little expectation of privacy, and protection of privacy was ancillary to protection of property).

120. See Fields & Hardy, *supra* note 18, at 406 (stating that while the Mutiny Act prevented the military from being quartered in private homes without the owner’s consent, it did allow for quartering in public structures).

121. William Pitt, *Speech against the Excise Bill* (1763) (quoted in *Miller v. United States*, 357 U.S. 301, 307 (1958)).

into the home.¹²² The prohibition against quartering in England applied not only to the physical quartering of soldiers, but also to preventing broader military intrusion into civilian homes.¹²³ When adopted, the Third Amendment provided Americans with the same guarantees and protections from military authority as William Pitt and the rest of the English enjoyed.¹²⁴

Though there is limited case law directly interpreting the Third Amendment, judicial recognition of the Amendment's intent is hardly new. In 1937, Judge Atwell described the Third Amendment as a reflection of the Framers understanding that "[t]here is something in the soul of the free man that resents any sort of espionage."¹²⁵ Furthermore, Judge Atwell understood that individuals' homes and businesses are "safe from unreasonable searches and seizures, and from official surveillance which destroy the very essence of liberty."¹²⁶ In *Laird v. Tatum*,¹²⁷ the majority recognized that military surveillance and military intrusion into civilian affairs ran counter to our traditions—traditions reflected in the Third Amendment.¹²⁸ The dissenters in *Laird* opined that the Bill of Rights itself was added in part to keep "political and social activities free from surveillance."¹²⁹ Shortly after *Laird*, in *Griswold v. Connecticut*,¹³⁰ Justice Douglas espoused his now-famous "penumbral" theory of zones of privacy contained in the Bill of Rights.¹³¹ Though the penumbral theory never received widespread adoption, *Griswold's* mention of the Third Amendment as an amendment written to protect privacy has never been seriously challenged.¹³²

122. See Hardy, *supra* note 30, at 81–82 (noting that the prohibition against quartering protected the sanctity of the home and was a reflection of a commitment to keeping the military subordinate to civilian authority).

123. See Bell, *supra* note 4, at 561 (arguing that the prohibition against quartering never exclusively referred to billeting soldiers in homes, but was understood to provide broader protections).

124. See Horvitz, *supra* note 6, at 211 (asserting that in the Colonial Era, Americans were deprived of the right to be free from quartering that had been enjoyed by the British from the time the Mutiny Act was passed).

125. *Wallace v. Ford*, 21 F. Supp. 624, 627 (N.D. Tex. 1937). The full statement on the Third Amendment in that case reads:

[t]here is something in the American that repels the right of the sovereignty to take up quarters in his home or place of business. It was evidenced by Mr. Jefferson when he penned the Declaration of Independence and complained that the King was quartering soldiers in the homes of free people. One of the amendments to the Constitution of the United States provides that no soldier shall, in time of peace, be quartered in any house without the consent of the owner. There is something in the soul of the free man that resents any sort of espionage. One's place of business is hardly as sacred as one's home, which has been described as the owner's castle, into which not even the king may enter, unbidden, but it is, nevertheless, safe from unreasonable searches and seizures, and from official surveillance which destroy the very essence of liberty.

Id. (citations omitted).

126. *Id.*

127. 408 U.S. 1 (1972).

128. *Id.* at 15.

129. *Id.* at 28 (Douglas, J., dissenting).

130. 381 U.S. 479 (1965).

131. See *id.* at 484–85 (arguing that the specific guarantees of liberties in the Bill of Rights have penumbras that create zones of privacy and give the Bill of Rights efficacy).

132. See *id.* (stating that the Third Amendment is "another facet of [the right to privacy in the Bill of Rights]"). After *Griswold*, the general right to privacy has been more consistently found in the Fourteenth Amendment. See, e.g., *Roe v. Wade*, 410 U.S. 113, 153 (1973) (noting that the right to privacy could be

The only federal case to directly address a Third Amendment claim on the merits, *Engblom v. Carey*,¹³³ held that the Third Amendment protected the property-based privacy interest of those lawfully occupying or possessing a dwelling.¹³⁴ In *Engblom*, striking New York correction officers employed by the state brought a claim when National Guard soldiers were quartered in staff house buildings.¹³⁵ The court in *Engblom* held that the Third Amendment is incorporated into the Fourteenth Amendment,¹³⁶ that National Guard troops were soldiers for Third Amendment purposes,¹³⁷ and that the workers had in their dwelling “a legitimate expectation of privacy protected by the Third Amendment.”¹³⁸

The idea that the home requires additional protection from civilian and military authority appears throughout American and English legal history, and is perhaps best described by William Coke’s famous saying “[a] man’s home is his castle.”¹³⁹ Though the need for protection is well understood, as Justice Harlan noted, the Third Amendment is one of only two places in the Constitution that the privacy of the home receives special treatment.¹⁴⁰

It is not just the courts that have recognized that the Third Amendment was written to protect the home from military surveillance. In 1833, Joseph Story noted: “[t]his provision speaks for itself. Its plain object is to secure the perfect enjoyment of that great right of the common law, that a man’s house shall be his own castle, privileged against all civil and military intrusion.”¹⁴¹ Story understood that the Third Amendment was written to protect the fundamental right of individuals to be free from military surveillance and intrusion into their homes.¹⁴² Story’s inclusion of civil and military authority in his discussion of the Third Amendment is a reflection of contemporary understanding that the military must not be used as a tool of civilian law

“founded in the Fourteenth Amendment’s concept of personal liberty”).

133. 677 F.2d 957 (2d Cir. 1982).

134. See *id.* at 962 (holding that the protections of the Third Amendment are not limited to the owner of a property, but also include those with a legal right to exclude others). The *Engblom* court considered the absurdity of a rigid interpretation of the word “owner” for Third Amendment purposes; for example, an apartment dweller could be denied the privacy right against forced quartering of troops, but be protected from unreasonable searches and seizures by way of the Fourth Amendment. *Id.*

135. *Id.* at 958.

136. *Id.* at 961. The *Engblom* Court reasoned that because the Third Amendment is a “fundamental” right, it is applied to the states by way of the Fourteenth Amendment. *Id.*

137. *Id.* at 961.

138. *Id.* at 963.

139. See SIR EDWARD COKE, THE THIRD PART OF THE INSTITUTES OF THE LAWS OF ENGLAND 161 (W. Clarke and Sons ed. 1817) (“For a mans house is his castle, et domus sua cuique tutissimum refugium; for where shall a man be safe, if it be not in his house?”). The phrase “a man’s home is his castle” appears throughout American and English jurisprudence. See *Rowan v. U.S. Post Office Dep’t*, 397 U.S. 728, 737 (1970) (noting “[t]he ancient concept that ‘a man’s home is his castle’ into which ‘not even the king may enter’ has lost none of its vitality”); *Martin v. City of Struthers, Ohio*, 319 U.S. 141, 150 (1943) (Murphy, J., concurring) (noting that he is a firm believer in the maxim); Gormley, *supra* note 119, at 1358 (“[t]he Rhode Island Code of 1647 provided that ‘a man’s house is to himselfe [sic], his family and goods as a castle’ ”).

140. *Poe v. Ullman*, 367 U.S. 497, 549 (1961) (Harlan, J., dissenting).

141. 3 J. STORY, COMMENTARIES ON THE CONSTITUTION § 1893 (1833).

142. *Id.*

enforcement or tax collection.¹⁴³

Modern writers similarly understand the Third Amendment to “prevent the military from exercising its power over citizens and to guarantee that it would remain subordinate to civilian law, particularly within private homes,”¹⁴⁴ and to solidify the common law notion that a man’s home is his castle.¹⁴⁵ Scholars have proposed that the Third Amendment provides rules for limiting the law enforcement power of the military.¹⁴⁶ Former Chief Justice Warren Burger wrote that the Third Amendment is a recognition that military authority must be subservient to civilian authority, and that the government cannot intrude into private homes without adequate reason.¹⁴⁷ The Third Amendment guarantees that the home is safe from military intrusion unless the nation is at war and Congress approves of the intrusion.

Despite the Framers’ intentions, the Third Amendment is often discussed as a historical footnote or curious relic of the past.¹⁴⁸ The plain language nature of the word “quartering” seems the most likely reason for the Amendment’s lost relevance.¹⁴⁹ However, the Court has often found it necessary to move beyond a plain language reading of the protections intended by the Bill of Rights. For Fourth Amendment purposes, the term “search” now deals more with an individual’s expectation of privacy than whether a physical intrusion took place.¹⁵⁰ The same principles that the Court used to examine the intentions of the Fourth Amendment also apply to the Third.¹⁵¹ Although it has been suggested that the Third and Fourth Amendments are inexorably linked,¹⁵² perhaps the best model for Third Amendment jurisprudence is found in the Court’s interpretation of the Fifth Amendment in *Miranda*.

IV. *MIRANDA* AND THE THIRD AMENDMENT

A. *Miranda v. Arizona*

Few cases in American History have had as great an effect on the

143. See Dugan, *supra* note 3, at 572 (observing that Framers including Adams, Henry, and Madison understood that using the military to enforce the law undermines the legitimacy of the law and creates a danger that the military will replace civilian rule).

144. JASON PORTERFIELD, *THE THIRD AMENDMENT: THE RIGHT TO PRIVACY IN THE HOME* 49 (2011).

145. Holmes, *supra* note 34, at 86.

146. Dugan, *supra* note 3, at 587.

147. Holmes, *supra* note 34, at 6.

148. See Fields, *supra* note 25, at 211 (concluding that a practicing attorney will have little use for the Third Amendment).

149. See *id.* (discussing the apparent obsolescence of the practice of quartering soldiers in private homes).

150. See, e.g., *Katz v. United States*, 389 U.S. 347, 360 (1967) (Harlan, J., concurring) (“electronic as well as physical intrusion into a place that is . . . private may constitute a violation of the Fourth Amendment”).

151. See generally Dugan, *supra* note 3 (providing a detailed comparison between the Third and Fourth Amendments and their application).

152. Dugan, *supra* note 3, at 559.

American psyche as *Miranda*.¹⁵³ Prior to *Miranda*, courts determined whether a defendant's confession of guilt was admissible as evidence at trial by conducting a Fourteenth Amendment due process or "voluntariness" test.¹⁵⁴ If a confession was ruled to have been made voluntarily, then it complied with the Fifth and Fourteenth Amendments and was, therefore, admissible.¹⁵⁵ Although the Due Process Clause still requires a confession to be voluntary,¹⁵⁶ the *Miranda* decision added a new layer of protection for suspects in custody and enormously influenced the practices of law enforcement.¹⁵⁷

According to *Miranda*, all police interrogations are inherently coercive, and a suspect's Fifth Amendment rights cannot be guaranteed without "the use of procedural safeguards effective to secure the privilege against self-incrimination."¹⁵⁸ These procedural safeguards are not enumerated in the Constitution. In fact, the right to counsel during interrogation, included in the guarantees provided by *Miranda*, is not mentioned in the Fifth Amendment.¹⁵⁹ According to *Miranda*, the Fifth Amendment privilege is so necessary to the function of our constitutional system that warnings must be put in place to guarantee its protection.¹⁶⁰ In *Miranda*, the Court reaffirmed the constitutional principle that it first espoused in 1910:

our contemplation cannot be only of what has been, but of what may be. Under any other rule a constitution would indeed be as easy of application as it would be deficient in efficacy and power. Its general principles would have little value, and be converted by precedent into important [sic] and lifeless formulas. Rights declared in words might be lost in reality. And this has been recognized. The meaning and vitality of the Constitution have developed against narrow and restrictive construction.¹⁶¹

The Court in *Miranda* upheld a longstanding view that when interpreting the Constitution, it becomes a deficient and lifeless document if the principles

153. See LAWRENCE S. WRIGHTSMAN & MARY L. PITTMAN, *THE MIRANDA RULING: ITS PAST, PRESENT, AND FUTURE* 3 (2010).

154. See *Dickerson v. United States*, 530 U.S. 428, 433–34 (2000) (reviewing that prior to *Miranda*, the due process determination had been refined into an inquiry of "whether a defendant's will was overborne"); see also Mandy DeFilippo, *You Have the Right to Better Safeguards: Looking Beyond Miranda in the New Millennium*, 34 J. MARSHALL L. REV. 637, 638 (2001) (providing an overview of the history of the Self-Incrimination Clause of the Fifth Amendment).

155. See DeFilippo, *supra* note 154, at 638 (stating that in determining whether a statement was voluntary, courts did not attempt to figure out what a suspect was thinking, but rather they used a series of factors as a proxy for that determination).

156. See *Dickerson*, 530 U.S. at 434 (holding that *Miranda* did not abrogate the voluntariness requirement under the Due Process Clause).

157. See Paul G. Cassell & Richard Fowles, *Handcuffing the Cops? A Thirty-Year Perspective on Miranda's Harmful Effects on Law Enforcement*, 50 STAN. L. REV. 1055, 1058 (1998) (arguing that empirical analysis has shown that contrary to the claims of *Miranda*'s supporters, law enforcement has been seriously hampered by the effects of *Miranda*).

158. *Miranda v. Arizona*, 384 U.S. 436, 444 (1966). The procedural safeguards include a suspect's right to: (1) remain silent, (2) be told that any statement made may be used as evidence against the suspect, and (3) know that the suspect has the right to the presence of an attorney, either retained or appointed. *Id.*

159. See U.S. CONST. amend. V.

160. *Miranda*, 384 U.S. at 468.

161. *Id.* at 443–44 (1966) (quoting *Weems v. United States*, 217 U.S. 349 (1910)).

in its drafting are ignored.¹⁶² The opinion began by overviewing the coercive methods used by police and endorsed in police training manuals.¹⁶³ In writing for the Court, Chief Justice Earl Warren noted that these manuals encouraged police to trick suspects out of exercising their constitutional rights.¹⁶⁴ These coercive methods in the stationhouse rarely ran afoul of the Fifth Amendment because, as the spirited dissenters noted, the Fifth Amendment historically applied only to the courthouse, not the police station.¹⁶⁵ The majority understood that the constitutional privilege against self-incrimination was now at loggerheads with actual practice in the United States.¹⁶⁶ A right to be free from self-incrimination that only applied at the courthouse was like closing the barn door once the horses were free. The narrow application of self-incrimination was no longer sufficient to protect Fifth Amendment rights.¹⁶⁷

In order to guarantee the constitutional privilege against self-incrimination, the Court held that all police interrogation involves coercion; thus, law enforcement must take steps to mitigate this coercion.¹⁶⁸ Although the Court could have adopted a more flexible test to determine whether a suspect actually felt coerced during an investigation, previous experience with case-by-case determinations of due process violations had produced innumerable problems for courts and police.¹⁶⁹ Therefore, a set of warnings given to suspects in custody would serve to guarantee that suspects were informed of their constitutional rights.¹⁷⁰ These warnings have been described as part of the “core of *Miranda*” and, without them, there would be a significant void in the protection of the Fifth Amendment.¹⁷¹

162. *Id.*

163. *Id.* at 447–56. Coercive interrogation techniques listed by the Court include this instruction from a police interrogation manual:

If at all practicable, the interrogation should take place in the investigator's office or at least in a room of his own choice. The subject should be deprived of every psychological advantage. In his own home he may be confident, indignant, or recalcitrant. He is more keenly aware of his rights and more reluctant to tell of his indiscretions or criminal behavior within the walls of his home. Moreover his family and other friends are nearby, their presence lending moral support. In his office, the investigator possesses all the advantages. The atmosphere suggests the invincibility of the forces of the law.

Id. at 449–50. Other techniques listed by the Court include the “Mutt and Jeff” act (in which one police officer is hostile and another is compassionate), offering legal excuses, presenting fake evidence and witnesses, and telling suspects that remaining silent will be seen in trial as evidence of guilt. *Id.* at 449–54.

164. *Id.* at 455.

165. *Id.* at 510 (Harlan, J., dissenting).

166. *Id.* at 461 (majority opinion) (“[a]s a practical matter, the compulsion to speak in the isolated setting of the police station may well be greater than in courts or other official investigations, where there are often impartial observers to guard against intimidation or trickery”).

167. *See id.* at 478 (discussing that without the safeguards, meaningful exercise of the privilege against self-incrimination is impossible).

168. *See* Stephen J. Schulhofer, *Reconsidering Miranda*, 54 U. CHI. L. REV. 435, 447 (1987) (reviewing criticisms of *Miranda*'s protection against coercion and stating that seasoned or well-educated criminals might not feel any sense of coercion during a police interrogation).

169. *See id.* at 450 (observing the high adjudicatory costs of case-by-case determinations, and the rarity of cases in which there is no compulsion for a suspect to talk to police).

170. *Miranda*, 384 U.S. at 468.

171. Schulhofer, *supra* note 169, at 436.

The Court understood that the Fifth Amendment was ratified to prevent individuals from being forced to testify against themselves, but that guarantee had been undermined by a literal reading of the Constitution.¹⁷² The Court instead interpreted the Framers' intentions and listed the steps necessary for law enforcement to honor those protections.¹⁷³ By abandoning the literal binds of the Fifth Amendment and instead focusing on what the Amendment sought to protect, the Court reached one of its most celebrated decisions.

B. Why a Literal Application of the Third Amendment is Insufficient and Incorrect

Due to developments in military surveillance, the Third Amendment's protections have eroded in a manner parallel to the contraction of Fifth Amendment rights pre-*Miranda*. Just as police interrogation techniques had become highly advanced by the time *Miranda* was decided,¹⁷⁴ today the military's surveillance capabilities are far beyond what they were in 1789.¹⁷⁵ Over sixty years ago, Justice Jackson lamented that "[s]cience has perfected amplifying and recording devices to become frightening instruments of surveillance and invasion of privacy."¹⁷⁶ Beginning in the 1960s, warrantless electronic surveillance was conducted by the executive branch during the Cold War.¹⁷⁷ During the Vietnam War, the military was used to monitor domestic dissent.¹⁷⁸ Between 1945 and 1975, under the guise of national security, warrantless surveillance became a tool of the executive to wield political power.¹⁷⁹

The Court in *Miranda* noted that police had effectively circumvented suspects' Fifth Amendment privileges against self-incrimination by tricking, cajoling, and confusing them into testifying against themselves in the stationhouse—in the twilight of the Fourteenth Amendment, but beyond the reach of the Fifth.¹⁸⁰ Police avoided the Fifth Amendment by securing a confession before a suspect went to court.¹⁸¹ Today, technology continues to

172. See *supra* notes 161–165 and accompanying text (highlighting the reasoning that the Court in *Miranda* used to reach its decision).

173. See Charles D. Weisselberg, *Saving Miranda*, 84 CORNELL L. REV. 109, 121 (1998) (asserting that the Court's holding was based on an interpretation of the Constitution's prescription of individuals rights which "cannot be abridged").

174. *Miranda*, 384 U.S. at 447–56.

175. See *infra* notes 182–183 and accompanying text (reviewing some of the methods by which military surveillance can infringe on privacy).

176. *Irvine v. California*, 347 U.S. 128, 132 (1954).

177. Scott Michelman, *Who Can Sue Over Government Surveillance?*, 57 UCLA L. REV. 71, 74 (2009).

178. See Joseph Ellison Earnest, *The Jurisdictional Amount in Controversy in Suits to Enforce Federal Rights*, 54 TEX. L. REV. 545, 558–59 (1976) (discussing the rapid expanse of federal executive power and the fear that such power would curtail constitutional rights).

179. Laura K. Donohue, *Anglo-American Privacy and Surveillance*, 96 J. CRIM. L. & CRIMINOLOGY 1059, 1081 (2006).

180. See *supra* notes 161–165 and accompanying text (discussing how police were able to circumvent the Fifth Amendment's protections by not implicating it in the first place).

181. *Id.*

advance to the point at which military and law enforcement can invisibly monitor all cell phone calls made in any given area.¹⁸² The Department of Homeland Security may soon be given authority for monitoring internet usage and access.¹⁸³ The National Security Agency (“NSA”) eavesdropped on private phone calls made by Americans from inside their homes for several years.¹⁸⁴ As Justice Brandeis noted over ninety years ago, the privacy of the home can be violated in ways unimagined by the Framers.¹⁸⁵

The lack of interpretation of the Third Amendment suggests that the military can circumvent the protections of the Third Amendment—just as police prior to *Miranda* avoided the Fifth Amendment—by allowing the military to engage in virtually unlimited surveillance of a home so long as they do not physically quarter a soldier there.¹⁸⁶ Advancements by the military in logistics, organization, and technology have made the need to physically quarter troops in homes, inns, and alehouses obsolete.¹⁸⁷ Therefore, it follows that the Third Amendment today provides almost no protection, a situation reminiscent of Alexander Hamilton’s fear that by listing certain rights, it would be implied that other rights could be taken away.¹⁸⁸

Although the need to quarter troops in homes may be obsolete, the protections are not. Quartering was among the most galvanizing forces behind the Revolutionary War, and the need to control the practice was one of the most agreed-on issues by the Framers.¹⁸⁹ Quartering was not despised by the Framers merely because of the inconvenience of housing a soldier, but also because quartering was an intrusion into the sanctity of the home.¹⁹⁰ The Third Amendment today leaves the sanctity of the home virtually undefended

182. See Amar Tour, *DoJ: Stingray cellphone tracking device falls under Fourth Amendment, but don't ask about it*, ENGADGET (Nov. 6, 2011, 2:44 PM), <http://www.engadget.com/2011/11/06/doj-stingray-cellphone-tracking-device-falls-under-fourth-amend/> (discussing the “stingray” device which acts as a faux cell phone tower and intercepts all cell phone calls from a certain area and collects data).

183. See Cynthia Hodges, *DHS Napolitano's riddles at cyber-security event exposed*, EXAMINER (Nov. 8, 2011), <http://www.examiner.com/homeland-security-in-chicago/dhs-napolitano-s-riddles-at-cyber-security-event-exposed> (requiring disclosure of data breaches as well as other yet unclear cybersecurity measures to homeland security).

184. See Brian Ross et al., *Exclusive: Inside Account of U.S. Eavesdropping on Americans*, ABC NEWS: THE BLOTTER (Oct. 9, 2008), <http://abcnews.go.com/Blotter/story?id=5987804&page=1#.TsfHnO-Y20> (“Despite pledges by President George W. Bush and American intelligence officials to the contrary, hundreds of US citizens overseas have been eavesdropped on as they called friends and family back home, according to two former military intercept operators who worked at the giant National Security Agency (NSA) center in Fort Gordon, Georgia.”).

185. *Olmstead v. United States*, 277 U.S. 438, 464 (1928) (Brandeis, J., dissenting) (stating that technology could erode privacy by using methods that have not been invented yet).

186. See Fields, *supra* note 25, at 210–11 (implying that a Third Amendment violation can only occur if a soldier physically takes up residence in someone’s home).

187. *Id.* at 211.

188. See *supra* note 93 and accompanying text (reviewing Alexander Hamilton’s concerns that an enumerated Bill of Rights could ultimately do more harm than good).

189. See Hardy, *supra* note 30, at 81 (noting that every draft of the Bill of Rights considered in 1789 included a provision against quartering).

190. See *id.* at 81 (regarding the Third Amendment as a reflection of “ancient commitments” to the rule of law and the necessity of a military that is subordinate to civilian authority).

from military surveillance, contrary to the will of the Framers.¹⁹¹

When deciding *Miranda*, the Supreme Court addressed a similarly ineffective amendment.¹⁹² At that time, the Self-Incrimination Clause of the Fifth Amendment had a fairly limited application—protecting defendants in the courthouse from making statements against themselves.¹⁹³ Yet the Court in *Miranda* realized that the archaic application of the self-incrimination clause of the Fifth Amendment was completely ineffective.¹⁹⁴ Safeguards were necessary for Americans to effectively exercise the rights protected by the Fifth Amendment.¹⁹⁵ Perhaps most importantly, the Court held that there was no requirement that a suspect actually feel coercion for the purposes of a Fifth Amendment violation.¹⁹⁶

The rights guaranteed by the Third Amendment—not only to be free from having to house a soldier, but to be free from the prying eyes of the military—are fundamental to liberty.¹⁹⁷ The Court in *Miranda* implemented a series of safeguards to ensure that another fundamental right—to be free from self-incrimination—was not carelessly brushed aside.¹⁹⁸ The Third Amendment requires similar safeguards, and just as *Miranda* did not require actual coercion, the Third Amendment must apply regardless of whether a physical trespass by a soldier has taken place. The test for a Third Amendment violation should be whether the right to privacy of the home is violated by the military. In order to guarantee the liberties that the Framers intended, the Third Amendment needs a *Miranda* moment. The Third Amendment must be applied to bar nonconsensual military surveillance or other projections of military authority into the home, unless the nation is at war and Congress explicitly authorizes the practice.

V. APPLICATION OF THE THIRD AMENDMENT

Principles of constitutional interpretation also lead to the conclusion that the Third Amendment must be reinterpreted. Opponents of such an interpretation might say that the plain language of the Amendment belies its

191. See *supra* notes 179–181 and accompanying text.

192. Note, *Reaffirmation of Confessions Inadmissible Under McNabb-Mallory*, 72 YALE L.J. 1434, 1434–35 (1963) (arguing in a pre-*Miranda* note that police interrogations were highly coercive and led to confessions undermining the purpose of the Fifth Amendment's Self-Incrimination Clause).

193. See *supra* Part IV.A (discussing how prior to *Miranda* the Fifth Amendment's Self-Incrimination Clause had a more limited application, applying only to statements made in the context of proceedings).

194. See *supra* Part IV.A (asserting that the *Miranda* Court rested its decision on the intent of the Framers, rather than the literal text of the Fifth Amendment).

195. *Miranda v. Arizona*, 384 U.S. 436, 478 (1966).

196. See *id.* (holding that “when an individual is taken into custody or otherwise deprived of his freedom by the authorities in any significant way and is subjected to questioning, the privilege against self-incrimination is jeopardized”).

197. See Hardy, *supra* note 30, at 81 (concluding that the Third Amendment reflects centuries of dispute regarding the role of the military and protection of homeowners).

198. Weisselberg, *supra* note 173, at 119–21 (discussing the Court's preference for upholding the values of the Fifth Amendment over the interests of police in obtaining confessions).

expansion, but this proposed reinterpretation is not unlimited. Quartering is permissible during wartime so long as there is congressional approval; the Amendment also only forbids military intrusions. This leaves significant issues unresolved, such as the definition of wartime for purposes of the Third Amendment, the congressional action needed to lift the prohibition, and the events that constitute military intrusion.

A. Principles of Constitutional Interpretation

It is well settled that the Third Amendment was written to prevent military intrusion into the home. When constitutional provisions such as the Third Amendment are construed on a purely literal basis, they destroy the Framers' purposes.¹⁹⁹ The text of the Third Amendment need not be a "straightjacket, confining the judge to language that would have been different if its drafters had foreseen later events."²⁰⁰

The issue of wiretapping and surveillance has long given the Court difficulty in its constitutional application because it was unimaginable at the time the Bill of Rights was drafted. For example, in 1928 Chief Justice Taft struck down a Fourth Amendment challenge to a series of warrantless wiretaps, holding that there was no search because there was no physical entry into the home, and that the plain language of the Amendment forbade any judicial expansion.²⁰¹ Justice Brandeis foresaw—in a prophetic dissent—that the government could develop even more sophisticated means than wiretapping to monitor citizens.²⁰² He argued that the protections guaranteed by the Fourth Amendment were much broader than a literal application of its text might suggest.²⁰³ To fail to provide those protections would be to undermine the historical understanding that constitutional provisions protecting privacy and property should be liberally construed.²⁰⁴

Justice Brandeis's argument was ultimately accepted in 1967 when the Supreme Court again faced the issue of wiretapping.²⁰⁵ The Court examined the purpose of the Fourth Amendment to determine if a search had occurred and determined that the Amendment was written to "keep the state out of

199. See GREGORY BASSHAM, ORIGINAL INTENT AND THE CONSTITUTION: A PHILOSOPHICAL STUDY 48–49 (1992) (arguing that a literal interpretation of guarantees in the Bill of Rights would destroy the purpose intended by the Framers).

200. See PHILIP BOBBITT, CONSTITUTIONAL INTERPRETATION 14 (1991) (arguing the Court should take into account the intent of the Framers when interpreting and applying the Constitution).

201. See *id.* (discussing the opinion in *Olmstead v. United States*, 277 U.S. 438, 464 (1928), in which Chief Justice Taft rejected expanding the term "search" to include a wiretap).

202. *Olmstead v. United States*, 277 U.S. 438, 464 (1928) (Brandeis, J., dissenting) (arguing that the Fourth Amendment has never required such a literal construction of the word "search").

203. *Id.* (arguing that the Fourth Amendment protects against any unjustified intrusion of privacy against an individual).

204. *Id.* (discussing that the Court in *Boyd v. United States*, 116 U.S. 616 (1886), understood that courts must be watchful for any erosion of constitutional guarantees).

205. See Bobbitt, *supra* note 200, at 14 (discussing *Berger v. New York*, 388 U.S. 41 (1967), which overruled *Olmstead v. United States*).

constitutionally protected areas until it has reason to believe that a specific crime has been or is being committed.”²⁰⁶ In *Berger v. New York*,²⁰⁷ the Court understood that the prohibition against unreasonable searches was meant to protect privacy, not just forbid a constable from physically rummaging through a citizen’s things without a warrant.²⁰⁸ The Court also analogized wiretapping over a two-month period to “a series of intrusions, searches, and seizures.”²⁰⁹

When the military conducts surveillance and monitors activities in the home, the functional equivalent of quartering occurs. In some ways, the intrusion into privacy is even greater because the colonists at least knew when a soldier was inside their home. That is not the case with wiretapping and other methods of electronic surveillance. The words “search” and “self-incrimination” have each been interpreted to provide modern meaning for words written in 1789.²¹⁰ The term “quartering” should be no different, and the Third Amendment’s protections should not be so easily discarded.

B. War for Purposes of the Third Amendment

For the Framers, quartering was a drastic infringement on privacy and property rights permissible only during war.²¹¹ The Framers debated a version of the Third Amendment that would have authorized Congress to permit quartering during times of unrest or upheaval, but instead they chose the version that only permits quartering during a time of war.²¹² The Constitution’s treatment of war is “narrow and technical,” making it less open to broad interpretations.²¹³ For the Framers, war was different from insurrection and invasion, and the Constitution treats them differently.²¹⁴ For Constitutional purposes, “peace” would logically mean any time there was no official declaration of war.²¹⁵ Invasions, insurrections, and unrest were problems for the militia to deal with—not the military.²¹⁶ Though the President is Commander-in-Chief of the armed forces, the decision to declare war is left to Congress.²¹⁷ So, too, is the decision to enact legislation to

206. *Id.*

207. 388 U.S. 41 (1967).

208. *Id.* at 59.

209. *Id.*

210. See *supra* Part IV.A (analyzing the Court’s willingness to apply the protections that the Framers intended, rather than limit those protections to a textual reading of the Bill of Rights).

211. See *supra* Part III.D (discussing how the colonial and English experience with quartering shaped the Framers’ aversion to it and led to the Third Amendment’s near absolute prohibition of quartering).

212. See *supra* Part III.D.

213. Bell, *supra* note 4, at 131.

214. See *The Prize Cases*, 67 U.S. 635, 642 (1862) (discussing the Constitution’s treatment of different categories of conflict as wholly independent of one another).

215. See Bell, *supra* note 4, at 131 (arguing that the condition of “unrest” must fall somewhere between peace and war for Third Amendment purposes).

216. See *The Prize Cases*, 67 U.S. at 647 (setting forth the procedures for which the militia could be called to arms).

217. *Id.* at 649.

authorize quartering.²¹⁸

Some argue that the idea of a formal, declared war is antiquated.²¹⁹ A strict interpretation of the term “war” in the Third Amendment would make it nearly impossible for Congress to authorize quartering.²²⁰ However, in light of the purpose of the Third Amendment, that might be exactly what the Framers had in mind. The Constitution allows wartime quartering in order to house soldiers during war, not to allow surveillance of the civilian population.²²¹ In the current War on Terror, the need to physically quarter soldiers in private homes within the United States is non-existent. It would be illogical to assume that the Third Amendment’s protections, designed to be lifted when there was a need to physically house troops, could be undermined by military actions requiring no domestic housing of troops. Whether the War on Terror is a “war” for the purposes of the Constitution, or is more akin to the constitutional concept of “insurrection,” is a question that courts have skillfully avoided.²²² In order for Congress to have the power to suspend the protections of the Third Amendment, that question must be resolved.

C. Congressional Action to Allow Quartering

During a declared war, Congress can authorize quartering in “a manner to be prescribed by law.”²²³ The power to make and conduct war is spread throughout the Constitution between the legislative and executive branches.²²⁴ The specific congressional actions needed to authorize quartering have never been litigated as Congress has never found occasion to do so.²²⁵ What is clear is that more than just a declaration of war is necessary because quartering must be done in “a manner to be prescribed by law.”²²⁶ The Third Amendment is designed as another check on the power of the President—to prevent him from wielding the armed forces in the way that King George III did.²²⁷ If the Third Amendment is interpreted properly, any

218. U.S. CONST. amend. III.

219. Bruce Ackerman & Oona Hathaway, *Limited War and the Constitution: Iraq and the Crisis of Presidential Legality*, 109 MICH. L. REV. 447, 452 (2011) (noting that formal declarations of war have fallen into disuse).

220. See Mary L. Dudziak, *Law, War, and the History of Time*, 98 CAL. L. REV. 1669, 1682 (2010) (stating that the United States has not formally declared a war since World War II).

221. See Bell, *supra* note 4, at 125 (suggesting that the American legal tradition allowing quartering during times of war was a recognition of the dangers inherent to the New World when the continent was settled).

222. See Jenny S. Martinez, *Process and Substance in the “War on Terror”*, 108 COLUM. L. REV. 1013, 1030 (2008) (discussing the difficulties in answering whether the War on Terror is actually a war, and how the Court may find trouble in making that determination).

223. U.S. CONST. amend. III.

224. See *The Prize Cases*, 67 U.S. 635, 641–63 (1862) (surveying the different powers regarding war assigned to different branches of the government).

225. Bell, *supra* note 4, at 139.

226. U.S. CONST. amend. III.

227. See Fields, *supra* note 25, at 211 (concluding that the Third Amendment is a reflection of the relationship between the civilians and the military).

executive action to introduce military authority into, or surveillance of, the home must receive congressional approval in order to comply with the Third Amendment.

D. *The Question of Civilian and Military Authority*

Perhaps the most difficult question in applying the Third Amendment is what constitutes military authority. Today, the line between civilian and military authority is blurred beyond anything the Framers could have anticipated.²²⁸ The Federal Bureau of Investigation, NSA, Central Intelligence Agency, and Department of Defense all perform domestic law enforcement and cooperate in varying degrees with the military.²²⁹

On the issue of quartering, the Framers may have had more foresight than appears at first glance. Patrick Henry noted that without a constitutional prohibition on quartering, “American homes were helpless and vulnerable to domestic military invasion.”²³⁰ Henry was concerned that the power of the military would be turned on the citizenry to help collect taxes and enforce laws.²³¹ Today, an entire military command devoted to homeland defense illustrates the military’s growing role in domestic law enforcement.²³² A surveillance program run by an organization like the NSA—which is headed by a general—is a projection of military power.²³³ The Third Amendment’s drafters feared the combination of military and civilian authority being used together inside the home.²³⁴ The Third Amendment should be construed broadly to prevent government agencies or programs that either report to the military or engage primarily in matters of national security from entering in or monitoring activities taking place in the home.

VI. CONCLUSION

The time for the Third Amendment’s *Miranda* moment is now. Today, the act of physically quartering soldiers in private homes seems laughable, but for centuries Englishmen and colonial Americans faced violations of privacy and property at the hands of military authority.²³⁵ The prohibitions against

228. William Astore, *What line between civilian and military authority?*, SALON (Jun. 14, 2011, 12:01 PM), http://www.salon.com/2011/06/14/washington_american_militarism/ (“[A]t the highest levels, what’s civilian and what’s military are increasingly difficult to tell apart as the two spheres blur and blend.”).

229. Donohue, *supra* note 179, at 1080.

230. Hardy, *supra* note 30, at 81–82.

231. See Dugan, *supra* note 3, at 568 (“Henry’s concern about quartering is that Congress will unjustly use military force at inappropriate times and in inappropriate places, like using soldiers to escort the tax collector into people’s homes to enforce the tax laws during peacetime.”).

232. See Nathan Canestaro, *Homeland Defense: Another Nail in the Coffin for Posse Comitatus*, 12 WASH. U.J.L. & POL’Y 99, 100 (2003) (discussing the Air Force patrolling American skies and a permanent military presence among civilians).

233. See Dugan, *supra* note 3, at 584–87 (discussing that because the NSA is concerned primarily with national security, and not domestic law enforcement, it should be considered an apparatus of the military).

234. See 3 J. STORY, COMMENTARIES ON THE CONSTITUTION § 1893 (1833).

235. See Hardy, *supra* note 30, at 81 (representing the Third Amendment as the product of centuries of

quartering in the United States and England reflect a long tradition of preference for the rule of law over military rule.²³⁶ Despite the intentions of the Framers, through advances in technology the military can electronically enter American homes at will, short-circuiting the protections envisioned by drafters of the Third Amendment.²³⁷

In *Miranda*, the U.S. Supreme Court reigned in police practices that had allowed police to obtain confessions without implicating a suspect's Fifth Amendment rights.²³⁸ The Court found that these types of interrogations resulted in Fifth Amendment violations.²³⁹ The privilege against self-incrimination was such an essential liberty that the Court required police to give suspects a series of warnings in order to protect it.²⁴⁰ The Framers understood the Third Amendment as guaranteeing an equally fundamental liberty.²⁴¹ The Third Amendment, widely seen as a privacy right, can be violated before being implicated—the military can glean as much information about a citizen's home using modern surveillance techniques as it can from housing a soldier there.²⁴² The Court in *Miranda* did not sit idly by while part of the Bill of Rights was eroded, and neither should the Supreme Court today.

No Amendment stands so literally construed as the Third.²⁴³ The Fourth Amendment once required a physical entry to constitute a search, but the Court moved beyond the textual reading of the Fourth Amendment.²⁴⁴ The Self-Incrimination Clause of the Fifth Amendment was once limited to statements made at the courthouse.²⁴⁵ The Third Amendment stands alone in judicial neglect. If the intent of the Third Amendment remains ignored, then the ruined tenement spoken of by William Pitt will not only allow in the wind, rain, and elements, but also the unchecked power of military authority.

dispute between military and civilian authority, designed to protect property owners from military intrusion); *supra* Part II (reviewing military abuses of civilian privacy and property between the Norman Conquest of England and the Revolutionary War).

236. See Hardy, *supra* note 30, at 81 (concluding that the Third Amendment encompasses a protection of the sanctity of the home and insistence on a legal framework for how to lift that protection).

237. See *supra* Part IV.B (reviewing some of the means by which military authorities can engage in surveillance of American homes without having to physically enter the home).

238. See *supra* Part IV.A (reviewing the Court's reasoning behind its decision in *Miranda* and analyzing the effect of coercive police interrogations which created the same concerns as an in-court Fifth Amendment violation).

239. See *supra* Part IV.A.

240. *Miranda v. Arizona*, 384 U.S. 436, 444 (1966) (listing the safeguards necessary to protect a suspect's Fifth Amendment privilege against self-incrimination).

241. See *supra* Part III.D (reviewing the protections intended by the Third Amendment, most notably to protect the sanctity of the home, to keep the military subservient to civilian authority, and to protect privacy rights).

242. See *supra* Part IV.B (reasoning that the same concerns present in *Miranda*, that police had effectively circumvented the Fifth Amendment, apply by analogy to military surveillance and the Third Amendment).

243. See Dugan, *supra* note 3, at 557 (claiming that the Third Amendment is literally construed and given little attention by judicial scholars).

244. See *supra* notes 201–209 and accompanying text (reviewing the Court's abandonment of the view that a Fourth Amendment violation requires a physical trespass).

245. See *supra* Part IV.A (reviewing the judicial history behind *Miranda*).